

July 16, 2024:

Plaintiff filed a Motion for Contempt of Court for the grounds of “Failure to Pay Child Support” and “Refusal to Co-Parent” requesting the Defendant be found in contempt, issue sanctions for her “willful disobedience of court orders”, pay any child support arrears immediately and require Defendant to engage in co-parenting through AppClose.

July 17, 2024:

Non-Jury Trial held regarding the issues of Custody, Parenting Time and Child Support.

Court heard Testimony and Arguments. Court reviewed all admitted exhibits.

Court prepared a Judgment finding the following:

*Temporary Order regarding the issues was entered on April 29, 2024 (Ex Parte following FIG).

*Ex Parte Order for Custody, Parenting Time and Child Support entered on April 29, 2024 was Dismissed.

*This Judgment is the initial Order regarding the issues of Custody and Parenting Time.

*Plaintiff's six (6) Motions filed on July 16, 2024, the day before Trial, Denied “as they are frivolous Motions for which Plaintiff has already been instructed by this Court that if he files an additional frivolous Motion, he will incur sanctions” and “the filings of these Motions was done as harassment to Defendant and to the Court, along with an abuse of the Court system”.

*Established Custodial Environment exists with both parties.

*Best Interest Factors were evaluated and following was found:

Factor a. Equal between parties

Factor b. Equal between parties

Factor c. Plaintiff's employment terminated by employer (IndiGrow).

Defendant has maintained employment with same employer (Kent County Prosecutor's Office) for nine years.

Favors Defendant/Mother

Factor d. Plaintiff has eviction pending regarding living arrangement.

Defendant purchased home in 2020 and is current on mortgage.

Favors Defendant/Mother

Factor e. Plaintiff resides by himself.

Defendant resides with minor child, her other child, her brother and her niece.

Favors Defendant/Mother

Factor f. Plaintiff's prior criminal record was reviewed. Communications via AppClose between parties was reviewed finding communications by Plaintiff to be badgering and harassment inflicted on Defendant.

Favors Defendant/Mother

Factor g. Plaintiff diagnosed with ADD and self-medicates with Marijuana (legal) however questions if the Marijuana laws are followed.

Defendant has no history of mental or physical health concerns.

Slightly Favors Defendant/Mother

Factor h. Plaintiff chose different childcare.

Defendant maintains maternal grandmother as care provider.

Favors Defendant/Mother

Factor i. Not applicable. Child not of sufficient age to express preference.

Factor j. Plaintiff gets frustrated when he does not get the answer he wants as evidenced by his frivolous Motions.

Court does not appreciate the Mother withholding the child.

Defendant states she encourages a close parent-child relationship.

Favors Defendant/Mother